

**UNITED STATES DISTRICT COURT
DISTRICT OF MINNESOTA**

Joseph Kirchner,

Case No. 26-CV-2594 (LMP/DJF)

Plaintiff,

vs.

**MEMORANDUM OF LAW IN
OPPOSITION OF PLAINTIFF'S
MOTION FOR LEAVE TO FILE A
SURREPLY**

Keith Ellison,

Defendant.

INTRODUCTION

Plaintiff Joseph Kirchner requests leave of the Court to file a surreply to Defendant's motion to dismiss on that grounds that he wants to correct his own misstatements of law. The Court should deny Mr. Kirchner's request because the surreply commits additional misstatements of law, improperly expands upon his prior arguments, and is partially mooted by Defendant's corrected memorandum. Alternatively, the Court should permit Mr. Kirchner to file a correspondence with the Court that solely addresses the misstatements of law.

BACKGROUND

This lawsuit pertains to Mr. Kirchner's attempts to have the Minnesota Attorney General's Office conduct a criminal investigation. Defendant filed its Motion to Dismiss and its supporting memorandum of law on June 17, 2026. Doc. 11. Mr. Kirchner filed his response on July 8, 2026. On July 23, 2026, Defendant filed its reply memorandum. (Doc. 16.) The reply memorandum identified several citations to Minnesota Statute § 8.06 that

Mr. Kirchner provided in his response and complaint that do not exist within the statute. (Doc. 16, p. 3-4.) Later that night, Mr. Kirchner contacted Defendant to meet and confer regarding his motion to file a surreply to correct the identified misstatements. (Doc. 20.) Mr. Kirchner identified several incorrect statutory citations, asked to address the Reply's characterizations of the record and its description of Plaintiff's citation of *Heckler v. Chaney*, 470 U.S. 821 (1985), and identified several incorrect citations to the record in Mr. Kirchner's first lawsuit against Defendant. *Id.* Defendant told Mr. Kirchner that he opposed the motion to file a surreply but would file a corrected Reply to address the *Kirchner I* citation errors. *Id.* Defendant promptly filed a corrected Reply. (Doc. 17.)

ARGUMENT

I. KIRCHNER'S SURREPLY IS IMPROPER.

Local Rule 7.1(c) contemplates that dispositive practice involves a moving party's dispositive motion; the opposing party's response; and a reply memorandum by the moving party. The reply must not raise new grounds for relief or present matters not related to the opposing party's response. L.R. 7.1(c)(3)(B). Importantly, Local Rule 7.1(i) expressly prohibits additional unsolicited memoranda. This Rule states that "[e]xcept with the court's prior permission, a party must not file a memorandum of law except as expressly allowed under [Local Rule] 7.1."

The Court should deny Mr. Kirchner's motion to file a surreply. As an initial matter, Mr. Kirchner does not argue that Defendant's Reply memorandum raised new issues of law or factual allegations. The Court should deny Mr. Kirchner's motion on those grounds alone. *Howard v. Big Lots Stores, Inc.*, Case No. 09-0126, 2010 WL 11618854, at *1 n.1

(W.D. Mo. Sept. 21, 2010) (denying unopposed motion to file a surreply because reply brief raised no new arguments). A surreply is not proper because Mr. Kirchner will not use the surreply to correct his own misstatements, but will advance and expand his own arguments to gain the last word.

A. A Surreply Is Not The Proper Avenue For Mr. Kirchner To Correct His Misstatements of Law.

Mr. Kirchner's lead justification in support of his motion is that he wishes to correct misstatements of Minnesota statute contained in his pleadings. (Doc. 23, p. 2.) While it is perhaps commendable for Mr. Kirchner to acknowledge that he provided fake legal support to the Court, a surreply is not the proper venue for him to correct his pleadings. Mr. Kirchner could easily file a correspondence with the Court acknowledging and correcting the misstatements. Allowing Mr. Kirchner to file a surreply carries the risk of allowing him to improperly advance new arguments to the Court after Defendant's motion is under advisement. Indeed, as argued *infra*, Mr. Kirchner's proposed surreply does exactly that.

B. Mr. Kirchner's Surreply Improperly Advances New Argument.

Mr. Kirchner argues that his proposed surreply does not make any new argument for relief. But the proposed surreply does just that. The proposed surreply improperly expands on his previous arguments to the Court and adds new theories of relief.

First, Mr. Kirchner expands upon his argument regarding *Heckler v. Chaney*, 470 U.S. 821, 832-33 & n. 4 (1985). (Doc. 22-1, p. 3-4). Mr. Kirchner argues that his case falls within the exception contemplated by the cited footnote, expanding on the passing citation he made in his responsive memorandum. (Doc. 15, p. 21.) He makes an argument about

supposed concessions made by Defendant. This is undoubtedly a new argument for relief raised in response to Defendant's proper briefing of his own legal authority. While Mr. Kirchner argues that he had no previous opportunity to respond to Defendant's argument regarding *Heckler*, what he fails to mention is that Defendant was responding to his own argument and authority.

Second, Mr. Kirchner argues that Defendant has not engaged with his cited authority regarding the *Ex Parte Young* exception. (Doc. 22-1, p. 4.) Once again, this is a new argument for relief raised in response to Defendant's Reply arguments. Defendant did not raise any new issues or make any new factual allegations in its Reply and Mr. Kirchner's proposed surreply would improperly put additional avenues for his relief before the Court.

Third, Kirchner repeats his argument that his previous lawsuit's disposition was on jurisdictional grounds. (Doc. 22-1, p. 4.) While this argument does not raise a new ground for relief, it is not substantially different from the arguments he made in his responsive memorandum. It adds nothing to the Court's analysis, making a surreply unnecessary.

Fourth and final, Mr. Kirchner's "correction" *still* misstates the text of Minn. Stat. § 8.06. Mr. Kirchner's proposed surreply argues, "The only Section 8.06 language quoted at Doc. 15 page 20 is verbatim: when the Attorney General requests, "it shall be the duty of any county attorney of the state to appear within the county and act." (Doc. 22-1, p. 3.) Mr. Kirchner uses this citation to advance the argument that criminal investigatory and prosecutorial authority "flows from the Attorney General to county attorneys" and that the Attorney General has supervisory authority over a county attorney's criminal powers.

(Doc. 1, ¶¶ 24, 39; Doc. 15, p. 20.) But Mr. Kirchner’s citations leave out the qualifying clause that defines the entire statute’s purpose. Minn. Stat. § 8.06 reads,

“The attorney general shall act as the attorney for all state officers and all boards or commissions created by law in all matters pertaining to their official duties. When requested by the attorney general, it shall be the duty of any county attorney of the state to appear within the county and act **as attorney for any such board, commission, or officer in any court of such county.**”

(emphasis added). This statute simply reads that the Attorney General can request county attorneys appear on behalf of state officers, boards, and commissions in their respective county court. It says nothing about the Attorney General’s purported criminal authority, nor does it create the power structure that Mr. Kirchner says it does. But by placing a period at the end of the citation, Mr. Kirchner creates the impression that this statute is far broader than it actually is. (Doc. 15, p. 20; Doc. 22-1, p. 3.)

While Mr. Kirchner says he merely wants to correct his own misstatements of the law, he cannot help but advance additional grounds for relief and attempt to persuade the Court. He argues that a surreply is appropriate when a reply raises matters that the responding party had no prior opportunity to address. (Doc. 23, p. 1). But he has not identified any new legal issues or factual matters in Defendant’s Reply. He simply disagrees with Defendant’s characterization of his own argument and authority. The Court should deny his motion, or in the alternative, allow Mr. Kirchner to file a correspondence that only addresses his admitted misstatements of law.

C. Mr. Kirchner’s Surreply Is Partially Mooted.

The final argument Mr. Kirchner advances in support of his surreply motion is that Defendant’s Reply memorandum contained minor incorrect citations to the record in

Kirchner I. As Mr. Kichner notes, Defendant's corrected Reply addressed those incorrect citations, mooted the issue. Accordingly, this argument cannot justify a surreply.

CONCLUSION

Defendant respectfully requests the Court deny Mr. Kirchner's motion for leave to file a surreply. The Court should consider Defendant's Motion to Dismiss on the previously submitted filings.

Dated: July 28, 2026

Respectfully submitted,

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